

House File 921

H-1164

1 Amend House File 921 as follows:

2 1. Page 1, by striking lines 25 through 33 and inserting:

3 <f. "Officer" means a certified law enforcement officer,
4 fire fighter, fire marshal, emergency medical technician,
5 paramedic, corrections officer, detention officer, jailer,
6 probation or parole officer, public safety telecommunicator,
7 dispatcher, or any other fire fighter or law enforcement
8 officer certified whose certification is governed by the Iowa
9 law enforcement academy or state fire marshal, and who is
10 employed by a municipality, county, or state agency.>

11 2. Page 1, line 34, by striking <9 and 10> and inserting <5,
12 9, and 10>

13 3. Page 1, after line 35 by inserting:

14 5. a. An officer who is the subject of a complaint, shall,
15 at a minimum, be provided a written summary of the complaint
16 prior to an interview. If a collective bargaining agreement
17 applies, the complaint or written summary shall be provided
18 pursuant to the procedures established under the collective
19 bargaining agreement. If the complaint alleges domestic abuse,
20 sexual abuse, workplace harassment, or sexual harassment, an
21 officer shall not receive more than a written summary of the
22 complaint.

23 b. If the employing agency or investigating agency
24 determines an interview of the officer is necessary to complete
25 an investigation, the employing or investigating agency
26 shall provide the officer who is the subject of a complaint
27 or the officer's legal counsel a complete legal copy of the
28 officer's incident report, prior statements, and the officer's
29 video and audio recordings, if both are available, from the
30 incident giving rise to the complaint without unnecessary delay
31 at no charge prior to the interview of the officer or any
32 Brady-Giglio proceeding. Nothing in this paragraph shall be
33 construed to constitute a disclosure of public records.>

34 4. Page 2, by striking lines 1 through 14 and inserting:

35 9. a. Once the investigation is complete, the employing

1 agency shall notify the officer subject to the investigation or
2 the officer's legal counsel within a reasonable amount of time
3 that the investigation is complete. The officer subject to the
4 investigation or the officer's legal counsel shall have ten
5 business days from the date that the officer received notice
6 that the investigation was complete to request a complete
7 investigative report. A disciplinary hearing of the officer
8 subject to the investigation shall not be scheduled sooner than
9 ten business days after that officer or the officer's legal
10 counsel receives the complete investigative report. If the
11 officer or the officer's legal counsel does not request the
12 complete investigative report, the disciplinary hearing may be
13 scheduled no sooner than ten business days from the last date
14 that the officer was able to request the report.

15 b. If a formal administrative investigation the disciplinary
16 hearing results in the removal, discharge, or suspension, or
17 other disciplinary action against an officer, copies of any
18 witness statements and the complete investigative agency's
19 report shall be timely provided to the officer upon the request
20 of the officer or the officer's legal counsel upon request at
21 the completion of the investigation.>

22 5. By striking page 2, line 21, through page 3, line 2, and
23 inserting:

24 <25. An officer shall have the right to petition the
25 district court, appeal, or intervene in an action regarding
26 a prosecuting agency's decision to place an officer on a
27 Brady-Giglio list. The district court shall have jurisdiction
28 over the review of the prosecuting agency's decision. The
29 district court shall perform an in camera review of the
30 evidence and may hold a closed hearing upon the request of
31 the officer or prosecuting agency, or upon the court's own
32 motion. The district court may affirm, modify, or reverse a
33 prosecuting agency's decision, and issue orders or provide
34 relief, including removal of the officer from a Brady-Giglio
35 list, as justice may require. If the district court finds in

1 favor of the officer under this subsection, upon adjudication,
2 the district court shall award the officer reasonable attorney
3 fees and court costs regardless of when the placement of the
4 officer on the Brady-Giglio list or the district court's ruling
5 in favor of the officer occurred. Any reasonable attorney
6 fees and court costs awarded to the officer shall be paid
7 by the agency that placed the officer on the Brady-Giglio
8 list. A prosecuting agency shall be immune from money damages
9 for any action under this subsection. Evidence presented
10 to the district court shall be provided under seal and kept
11 confidential unless otherwise provided by law and ordered by
12 the district court.>

13 6. Page 4, by striking lines 17 through 29 and inserting:

14 <a. A peer support ~~group~~ counselor or individual present
15 for a individual or group crisis intervention who obtains
16 information from an officer or a civilian employee of a law
17 enforcement agency, emergency management agency, emergency
18 medical services agency, or fire department by reason of the
19 counselor's capacity as a peer support ~~group~~>

20 b. counselor or an individual's presence for a group crisis
21 intervention shall not be allowed, ~~in giving testimony,~~ to
22 disclose any confidential communication properly entrusted to
23 the counselor or individual present for a an individual or
24 group crisis intervention by the officer or civilian employee
25 while receiving counseling or group crisis intervention
26 including in giving testimony.>

27 7. By striking page 4, line 33, through page 5, line 16, and
28 inserting:

29 <(1) "Officer" means a certified law enforcement officer,
30 fire fighter, fire marshal, emergency medical technician,
31 paramedic, corrections officer, detention officer, jailer,
32 probation or parole officer, public safety telecommunicator,
33 dispatcher, or any other fire fighter or law enforcement
34 officer ~~certified~~ whose certification is governed by the Iowa
35 law enforcement academy or state fire marshal, and who is

1 employed by a municipality, county, or state agency.

2 (2) "*Peer support ~~group~~ counselor*" means a law enforcement
3 officer, fire fighter, civilian employee of a law enforcement
4 agency or fire department, or a nonemployee counselor who
5 has been designated as a peer support ~~group~~ counselor by a
6 sheriff, police chief, fire chief, or department head of a
7 law enforcement agency, fire department, or emergency medical
8 services agency and who has received training to provide
9 emotional and moral support and counseling to an officer or
10 group who needs those services as a result of an incident in
11 which the officer or group was involved while acting in the
12 officer's or group's official capacity.>

VONDRAN of Scott